

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Marean	Team: Team # 3	CCRB Case #: 200612631	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/24/2006 9:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 3/24/2008	Precinct: 46		
Date/Time CV Reported Sun, 09/24/2006 10:08 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 09/24/2006 10:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kurt Maier	01218	935228	046 PCT
2. POM Jaime Pedraza	21301	935479	046 PCT
3. LT Paul McMahon	00000	899574	046 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Richard Fogarty	01562	876369	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers stopped and questioned § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Kurt Maier	Abuse: PO Kurt Maier frisked § 87(2)(b)	B . Exonerated
C . POM Jaime Pedraza	Abuse: PO Jaime Pedraza frisked § 87(2)(b)	C . Exonerated
D . POM Kurt Maier	Abuse: PO Kurt Maier refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . POM Jaime Pedraza	Abuse: PO Jaime Pedraza refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated
F . LT Paul McMahon	Abuse: Lt. Paul McMahon refused to provide his name to § 87(2)(b)	F . Unsubstantiated

Synopsis

The CCRB received this case on September 24, 2006 via the City website, filed by § 87(2)(b). On the same date, at approximately 9:00 PM, § 87(2)(b) and his nephew, § 87(2)(b) were outside § 87(2)(b)'s residence located at § 87(2)(b) in the Bronx. The two men were in possession of a box cutter at the time. PO Kurt Maier, PO Jaime Pedraza and Lt. Paul McMahon of the 46th Precinct were on patrol in the area. PO Maier stopped, questioned and frisked § 87(2)(b) and PO Pedraza stopped, questioned and frisked § 87(2)(b) all on suspicion of criminal possession of a weapon (Allegations A, B and C). The officers then released the two males, at which time § 87(2)(b) and § 87(2)(b) allegedly asked for the officers' names and shield numbers, which the officers refused to provide (Allegation D, E and F). § 87(2)(g) result in the recommendation that allegations A, B and C be closed as exonerated. § 87(2)(g) result in the recommendation that Allegations D, E and F be closed as unsubstantiated. § 87(2)(b) was offered mediation during his interview at the CCRB, but he declined.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b), is an § 87(2)(b) at the § 87(2)(b). He provided a statement at the CCRB on October 10, 2006 and viewed photographs at § 87(2)(b) in the Bronx on March 12, 2007 (Enc. 9A-G).

On September 24, 2006, § 87(2)(b) had dinner with his family inside his residence, § 87(2)(b) in the Bronx. At approximately 9:00 PM, § 87(2)(b)'s nephew, § 87(2)(b) and his wife, § 87(2)(b) prepared to go home with their baby. Everyone exited the building. § 87(2)(b) and § 87(2)(b) leaned against the wall of the building while they waited for § 87(2)(b)'s wife. After waiting about five minutes, an unmarked police vehicle turned down § 87(2)(b). The vehicle stopped in front of the building and three officers exited. § 87(2)(b) described PO #1 as a Hispanic male, 5'5", dressed in plainclothes; this officer was later identified by the CCRB as PO Jaime Pedraza of the 46th Precinct. He described PO #2 as a white male, 5'6", wearing brown pants and a hat; this officer was later identified by the CCRB as PO Kurt Maier of the 46th Precinct. § 87(2)(b) could not provide a description of PO #3, however this officer was later identified as Lt. Paul McMahon of the 46th Precinct. PO Pedraza asked § 87(2)(b) for his identification, and PO Maier asked § 87(2)(b) for his. § 87(2)(b) did not have his identification with him but told PO Pedraza that he lived upstairs and could have someone get it. PO Pedraza instructed § 87(2)(b) to turn around and get against the wall. § 87(2)(b) complied and PO Pedraza frisked § 87(2)(b)'s chest, waist area and legs. PO Pedraza asked § 87(2)(b) for his name and address, which § 87(2)(b) provided. PO Maier wrote down the information. PO Maier was very loud and abusive; however, § 87(2)(b) could not remember what specifically he said. § 87(2)(b) asked PO Pedraza why he was stopped; the officer responded that as they were driving down the street, they saw him walk from the vehicle to the wall. § 87(2)(b) told PO Pedraza that both he and § 87(2)(b) had been standing at the wall when the officer turned the corner and drove down the street. § 87(2)(b) asked each of the three officers individually for their names and shield numbers, yet none of the three provided the information. The officers walked back to their vehicle and got inside. As the officers were leaving, § 87(2)(b)'s family looked at the license plate number of the officers' vehicle, which was § 87(2)(e), § 87(2)(b). PO Maier yelled out, "You have the number?" § 87(2)(b) said, "Yes, thank you." The officers drove away. § 87(2)(b) and § 87(2)(b) proceeded to the 46th Precinct to file a complaint, but then decided to file the complaint online instead, which they did later that evening.

During his initial statement to the investigator, § 87(2)(b) did not include any details about having a box cutter in his possession at the time of the incident. When questioned further at the conclusion of his interview, § 87(2)(b) stated that earlier that day, he and his nephew had moved some items to his house, during which time they used § 87(2)(b)'s box cutter. § 87(2)(b) described it as a blue box cutter with a safety; about six inches long total, the blade about an inch and a half long when exposed. At the time of this incident, before the police arrived, § 87(2)(b) gave § 87(2)(b) the box cutter while standing next to the vehicle. § 87(2)(b) held the box cutter in his hand as he walked over to the wall, where he waited for his wife to return downstairs. § 87(2)(b) had his arms folded in front of him while standing on the wall. PO Maier saw the box cutter in § 87(2)(b)'s hand when he approached. He instructed § 87(2)(b) to uncross his arms and took the box cutter to examine it. PO Maier returned the box cutter to § 87(2)(b) before he left the location.

§ 87(2)(b) was shown photographs of PO Pedraza and PO Maier on March 12, 2007. § 87(2)(b) identified PO Maier as the officer who requested his identification, frisked him and refused to provide his name and shield number.

Results of Investigation

Civilian Statements

§ 87(2)(b) a § 87(2)(b) black male, § 87(2)(b), is § 87(2)(b)'s nephew. He is employed as a § 87(2)(b) for § 87(2)(b). § 87(2)(b) provided an online statement on the date of incident and a statement at the CCRB on October 10, 2006 and a statement at § 87(2)(b) in the Bronx on March 12, 2007 (Enc. 10A-G). § 87(2)(g)

§ 87(2)(b) stated he did not want to drive his vehicle with the box cutter inside it. He took the box cutter out of the vehicle and walked over to the wall of the building, where § 87(2)(b) and the others were standing, holding the box cutter in his right hand, and gave § 87(2)(b) the box cutter. As he did, the officers' unmarked vehicle approached.

§ 87(2)(b) also did not know the officers' names, but described PO #1, PO Pedraza, as a Hispanic male, 5'7", medium build, dressed in plainclothes. He described PO #2, PO Maier, as a white male, 5'8", medium build, dressed in plainclothes. § 87(2)(b) could not provide a description of PO #3, Lt. McMahon. § 87(2)(g), § 87(2)(b) alleged that PO Maier asked both he and § 87(2)(b) for their identifications and frisked them both as well. In his online statement, § 87(2)(b) did not allege that an officer frisked him. He stated that PO Maier was aggressive and loud during the encounter, although § 87(2)(b) could not remember what the officer said. § 87(2)(b) asked only PO Maier for his name and shield number; PO Maier heard the request but did not provide the information. § 87(2)(b) asked each officer for his name and shield number, however none provided the information.

§ 87(2)(b) also included that PO Pedraza was quite pleasant; the officer took § 87(2)(b) aside and told him that it was a routine stop. Later in the interview § 87(2)(b) stated that PO Pedraza told him that he and § 87(2)(b) fit the description of someone they were looking for. As the officers drove away, § 87(2)(b) and his family wrote down the license plate of the officers' vehicle. § 87(2)(b) instructed one of his cousins to write down the license plate number. PO Maier overheard this and said sarcastically, "You got that? Ok," and laughed.

§ 87(2)(b) was shown photographs of PO Maier and PO Pedraza on March 12, 2007. On PO Pedraza's photograph, § 87(2)(b) wrote, "When first PO was being loud this officer came over. No main issue with this PO; he was more easygoing with the situation." § 87(2)(b)

stated that he could not decidedly remember what the officer who stopped him looked like and was not certain whether that officer was PO Maier.

§ 87(2)(b)
§ 87(2)(b), a § 87(2)(b) black female, § 87(2)(b), is § 87(2)(b)'s wife. She provided a statement on March 12, 2007 at her residence, § 87(2)(b) (Enc. 10.5-E).

§ 87(2)(g)
§ 87(2)(g)

When § 87(2)(b) arrived downstairs, she saw her husband and nephew standing with their backs against the wall of the building and three men dressed in plainclothes standing with them. § 87(2)(b) described them as one Hispanic male and two white males. § 87(2)(b) asked what was happening but no one answered her. Two of the three individuals were questioning § 87(2)(b) and § 87(2)(b) at which point § 87(2)(b) realized that the three men were police officers. § 87(2)(b) did not remember what, specifically, the officers were asking them; the officers already had § 87(2)(b) and § 87(2)(b)'s identification. The Hispanic officer, PO #1, later identified as PO Pedraza, was mainly dealing with § 87(2)(b). § 87(2)(b) began speaking to PO Pedraza, but PO #2, later identified as PO Maier, said, "No, face me, just keep watching me." § 87(2)(b) asked the officers why they stopped them. § 87(2)(b) was not present while the officers frisked § 87(2)(b) and § 87(2)(b). She did not hear § 87(2)(b) or § 87(2)(b) ask the officers for their names and shield numbers. § 87(2)(b) was shown photographs of PO Pedraza and PO Maier during her interview. She stated that she could not remember which officer did what, specifically.

§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) a § 87(2)(b) Hispanic female, § 87(2)(b), is § 87(2)(b)'s wife. She provided a statement on March 12, 2007 at § 87(2)(b) (Enc. 10.5F-J). § 87(2)(g)

§ 87(2)(b) described one officer, PO #1, as a Hispanic male, who was later identified as PO Pedraza. He described another, PO #2, as a tall white male and the third, later identified as PO Maier, and PO #3 as a stocky, white male, later identified as Lt. McMahon. All the officers were dressed in plainclothes. § 87(2)(b) stated that the officers frisked § 87(2)(b) and § 87(2)(b) however she did not remember which officer frisked whom. § 87(2)(b) did not know if either officer went into either § 87(2)(b) or § 87(2)(b)'s pockets. PO Maier was the only disrespectful officer, raising his voice while giving the men instructions.

At one point while the officers were speaking to § 87(2)(b) and § 87(2)(b), § 87(2)(b) approached and came a bit closer to the two officers. Lt. McMahon instructed § 87(2)(b) to back up. § 87(2)(b) backed up and could not hear the conversation well; she did not know if § 87(2)(b) or § 87(2)(b) asked the officers for their names and shield numbers. § 87(2)(b) was shown photographs of PO Pedraza and PO Maier of the 46th Precinct. § 87(2)(b) stated she could not remember what each subject officer looked like in detail and could not pick out which officer was which by looking at the photos.

Identification of Officers Interviewed

The stop, question and frisk report (Enc. 11C) completed for § 87(2)(b) identified PO Maier. During his interview, PO Maier stated he was working with PO Pedraza and Lt. McMahon on the date of incident, which both officers confirmed. Sgt. Fogarty was interviewed § 87(2)(g) although it was later confirmed that he was not present for the incident.

Officer Statements

PO Jamie Pedraza

PO Pedraza, a § 87(2)(b) old Hispanic male, § 87(2)(b), has been an NYPD officer for two years. He provided statements at the CCRB on December 27, 2006 (Enc. 13A-D).

PO Pedraza worked from 5:30 PM on September 24, 2006 until 5:05 AM on September 25, 2006. He was assigned to special projects and was working with Lt. McMahon and PO Maier. PO Pedraza was wearing an NYPD windbreaker and was assigned to § 87(2)(e), § 87(2)(b) an unmarked sedan. He does not have any memo book entries regarding this incident.

On September 24, 2006, at about 9:00 PM, PO Pedraza, PO Maier and Lt. McMahon were in their vehicle, patrolling the area. PO Pedraza was sitting in the front passenger seat of the vehicle, Lt. McMahon was the operator and PO Maier was seated in the backseat. As they drove westbound on § 87(2)(b) the officers observed two black males near a parked vehicle with one door open; one male was inside the vehicle and one was outside. The officers observed a metal object being passed between the two males. PO Pedraza could not remember in which direction the object was being passed. At this point, the officers were about twelve feet from the two males, with PO Pedraza's side of the vehicle closest. To PO Pedraza, the object looked like a knife or other type of weapon. The action raised the officers' suspicion. All of the officers saw the object; no one particular officer decided to make the stop, all three were in agreement.

PO Pedraza and PO Maier exited the vehicle and approached the males as Lt. McMahon stayed inside the vehicle. PO Pedraza said, "Police. Can I have a second with you?" PO Pedraza spoke to one of the two males, whom he described as a black male who was older than himself. PO Maier spoke to the second, younger male. The officers examined the object and identified it as a box cutter; PO Pedraza described the object as a razor blade attached to a piece of metal, about 4 inches long. PO Pedraza asked the older male if he had any additional weapons on him and frisked him to ensure the safety of both individuals. When questioned further about the frisk, PO Pedraza stated that because there had been one potential weapon with the males, he wanted to be certain that there were no additional weapons in order to ensure his safety and that of everyone present. PO Pedraza felt a hard object in one of § 87(2)(b)'s front pockets. PO Pedraza then went inside this pocket to make sure the item was not a weapon. PO Pedraza discovered that what he had felt was § 87(2)(b)'s keys. PO Maier frisked the second male. It was confirmed that neither male had any weapons on them. PO Pedraza asked § 87(2)(b) for identification, which he believed the male provided, although he could not remember for certain.

PO Pedraza stated that at this point, the officers wanted to determine if the box cutter was being used for a lawful purpose or an unlawful purpose since the males were inside the vehicle. PO Pedraza stated that he wanted to be sure the males were not using the boxcutter for auto stripping. The officers asked the males if the vehicle belonged to them and what they were doing with the vehicle. It was determined that one of the males was the owner of the vehicle. PO Maier wrote down the males' information and later completed stop, question and frisk reports for the males. There were several females at the location. PO Pedraza stated that the females began yelling, questioning the officers' actions. Soon after, the officers returned to their vehicle and left the location.

No civilian asked the officers for their names or shield numbers. No civilian made any mention of the police vehicle's license plate. Both males were cooperative.

PO Kurt Maier

PO Maier, a § 87(2)(b) old white male, § 87(2)(b), has been an NYPD officer for two years. He first provided a statement regarding this incident at the CCRB on November 14, 2006. He provided a second statement regarding this incident on February 20, 2007 (Enc. 11A-G).

PO Maier worked from 5:30 PM on September 24, 2006 until 2:05 AM on September 25, 2006. He was assigned to special projects patrol. He was working with PO Pedraza and Lt. McMahon and dressed in uniform. The officers were assigned to unmarked § 87(2)(e), § 87(2)(b). He has no memo book entries regarding this incident.

PO Maier stated that he was not present for the incident. His memo book entries state the following:

1730: present for duty

2100: 98 with PO Pedraza

2200: 3 under at Cedar Avenue and Richman Plaza

2208: 10-61 admin

PO Maier completed the stop, question and frisk report for § 87(2)(b) on the date of incident (Enc. 11C). The report indicates that § 87(2)(b) was stopped because he was suspected of criminal possession of a weapon. The circumstances leading to the stop include that § 87(2)(b) was allegedly carrying objects in plain view commonly used in commission of crime and his actions were indicative of engaging in violent crimes. In addition, § 87(2)(b) changed directions at the sight of the officers. The reason for the stop was explained to § 87(2)(b) and he was frisked, but not searched. The reason for the frisk was because he had a box cutter and because the officers observed § 87(2)(b) pass a box cutter to a second individual. The report indicates that the officer was not in uniform but identified himself by verbal shield.

During his CCRB interview on November 14, 2007, PO Maier stated that at no point on the date of incident was he at or near § 87(2)(b). He stated that he is not familiar with the building and has never been to the location before. The names § 87(2)(b) and § 87(2)(b) were not familiar to PO Maier. The stop, question and frisk report, which lists his name as the officer who conducted the stop, was shown to PO Maier. The document did not aid PO Maier in remembering the incident. A brief description of the incident did not jog PO Maier's memory either. PO Maier stated that upon leaving the stationhouse for patrol on the date of incident, he and his partner proceeded to the west side of the precinct, west of University Avenue. When the investigator asked PO Maier why he completed the stop, question and frisk report if he was not at the location, PO Maier replied, "No clue." PO Maier did not remember completing the report and maintained that he was not involved in this incident.

During his interview on February 20, 2007, the investigator asked PO Maier if he would like to maintain his previous statement. PO Maier stated that he would not; he stated that after his initial CCRB interview, he spoke to his partner, PO Pedraza, who refreshed his memory as to what took place. PO Maier stated that he then remembered the incident and provided a description of the incident § 87(2)(g).

PO Maier stated that he asked for the identification of and frisked one of the two males, although he could not remember which. He stated he frisked the male because the two men were in possession of a knife and he wanted to frisk them to determine if the males had any additional weapons, for safety reasons. PO Pedraza frisked the second male. Neither officer ever went into either male's pockets. Neither of the males asked PO Maier for his name and shield number. PO Maier stated that he may have spoken to the male that PO Pedraza was dealing with, although he was not certain.

The entire interaction lasted approximately 2-3 minutes. PO Maier did not remember completing a stop and frisk report but he stated that apparently there is one with his name on it. He did not know if a stop and frisk report was completed for both males and he did not know if PO Pedraza completed one.

When asked why he remembered the incident five months after the incident but did not remember it just six weeks after the incident, PO Maier stated he stops many people every night and does not remember every interaction. He stated that the only reason he recalled this incident is because PO Pedraza reminded him that this was the incident involving the boxcutter and minivan, which jogged his memory. When reminded that he had said in his initial interview that he had been

at different locations at the time of this incident and that he stated he had never been to the incident location during his tenure as an officer, PO Maier stated that the officers drive throughout the entire precinct.

Lt. Paul McMahon

Lt. McMahon, a § 87(2)(b)-old white male, § 87(2)(b), has been an NYPD officer for fifteen years. He provided a statement at the CCRB on December 27, 2006 (Enc. 14A-D).

Lt. McMahon worked from 5:30 PM on September 24, 2006 until 5:05 AM on September 25, 2006. He was assigned as supervisor of special projects and was working with PO Pedraza and PO Maier. Lt. McMahon was dressed in plainclothes and assigned to § 87(2)(e), § 87(2)(f), an unmarked sedan.

Lt. McMahon stated that one of the males who was stopped was fairly calm and understanding however the other male was compliant but questioning why he was being stopped. Lt. McMahon observed PO Maier and PO Pedraza ask the two males for identification and frisk them. After a short time, about two women exited from the minivan who were much more irate than the males, raising their voices and being very animated as they questioned the officers' actions. Lt. McMahon exited the vehicle because more people were now involved in the situation. Lt. McMahon spoke to the women and explained that they were not harassing anyone and explained the reason for the stop. He told the women that they were on patrol and did not stop the men for kicks but for a valid reason and now the officers understood why one male had the box cutter. The conversation was not hugely effective and the women were still upset. The women were not directly involved in the stop, so Lt. McMahon then asked PO Maier and PO Pedraza if they had gotten the information they needed for a stop, question and frisk report. PO Maier and PO Pedraza said they had and all three officers returned to the police vehicle. PO Maier completed the stop, question and frisk reports. Lt. McMahon never interacted directly with the two men. He never heard any discussion of the police vehicle's license plate on the part of the civilians and no civilian ever asked Lt. McMahon for his name or shield number.

Police Documentation

A request for the SPRINT report was returned with negative results (Enc. 20A).

The command log does not contain any entries relevant to this incident (Enc. 15A-G).

The stop, question and frisk log lists § 87(2)(b) but does not include a listing for § 87(2)(b) (Enc. 16A).

The request of § 87(2)(b) stop, question and frisk report was returned stating there is no report on file (Enc. 20B).

The roll call indicates that Lt. McMahon, PO Pedraza and PO Maier were on duty at the time of the incident (Enc. 17A-B).

Officer CCRB History

PO Pedraza and PO Maier have no substantiated CCRB allegations (Enc. 3A and 4A). Lt. McMahon had an allegation of force substantiated by the CCRB Board in case 9803717. An allegation of strip-search against Lt. McMahon was substantiated in case 20003842, for which the Board recommended charges; the NYPD issued a command discipline on December 30, 2001. Allegations of frisk/search and vehicle search were substantiated against Lt. McMahon in case 200205489, for which the Board also recommended charges. § 87(2)(g), § 87(4-b)

§ 87(2)(b). No DCT trial was held for this case because the statute of limitations had expired. An allegation of vehicle search was substantiated against Lt. McMahon in case 200501381, for which the Board recommended charges and the NYPD issued instructions, the date of which is unknown (Enc. 5A-D).

Civilian CCRB History

§ 87(2)(b) has not filed any additional CCRB complaints. § 87(2)(b) filed complaint § 87(2)(b), and complaint § 87(2)(b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) and § 87(2)(b) did not provide the officers' names upon filing the complaint, however they provided detailed descriptions of the officers who frisked them. These descriptions largely matched PO Pedraza and PO Maier. PO Pedraza, PO Maier and Lt. McMahon stated that all three officers saw the possible weapon and collectively made the decision to approach the males, § 87(2)(g). Although § 87(2)(b) described the officer who frisked him as a Hispanic male and § 87(2)(b) described his as a white male, when viewing photographs of PO Pedraza and PO Maier, the undisputed subject officers, § 87(2)(b) identified PO Maier as the officer who frisked him and § 87(2)(b) could not confidently identify which approached him. Neither PO Maier nor PO Pedraza could identify whether he stopped § 87(2)(b) or § 87(2)(b). PO Maier completed the stop, question and frisk report for § 87(2)(b) and there is no report on file regarding § 87(2)(b). Both officers agreed that they each stopped and frisked one of the two males. § 87(2)(g).

Undisputed and Disputed Facts

It is undisputed that a box cutter was passed between § 87(2)(b) and § 87(2)(b) at the approximate time that the officers were driving down § 87(2)(b). It is also undisputed that § 87(2)(b) and § 87(2)(b) were stopped and frisked § 87(2)(g).

Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) During his initial interview, he claimed to have no memory of the incident and additionally claimed to have never visited the location of incident at any point throughout his tenure at the 46th Precinct. PO Maier was interviewed approximately seven weeks after this incident, before either PO Pedraza or Lt. McMahon provided their statements. During the interview, PO Maier was shown the stop, question and frisk report, which he completed, was given a brief description of the incident and was shown photographs of § 87(2)(b) and § 87(2)(b).

Still, he maintained that he did not recall the incident § 87(2)(g)

PO Maier was interviewed for the second time regarding this incident in February, 2007, at which time he stated he then remembered the incident because PO Pedraza had refreshed his memory. § 87(2)(g)

Allegations Not Pleaded

Although PO Pedraza stated that he went inside one of the male's front pockets upon feeling a hard bulge which he believed may have been a weapon and was, in fact, a set of keys, neither § 87(2)(b) nor § 87(2)(b) made such an allegation. § 87(2)(g)

Allegation A: Officers stopped and questioned § 87(2)(b) **and** § 87(2)(b)

Allegation B: PO Jaime Pedraza frisked § 87(2)(b)

Allegation C: PO Kurt Maier frisked § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged they were unjustly stopped and frisked by PO Pedraza and PO Maier. All three officers stated that they observed the two males pass an object between them which looked like a possible weapon while standing outside an open vehicle, therefore they stopped the two males and subsequently frisked them.

§ 87(2)(g) New York search and seizure guidelines stipulate that in order to conduct a lawful forcible stop, an officer must have reasonable suspicion that an individual has committed, is committing or is about to commit a crime (Enc. 1A) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). As cited in New York search and seizure, Criminal Procedure Law 140.50 reads, “When...a police officer...reasonably suspects that he is in danger of physical injury, he may search such person for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury” (Enc. 1C). § 87(2)(g)

§ 87(2)(b) it is recommended that allegations A, B and C be closed as exonerated.

Allegation D: PO Kurt Maier refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation E: PO Jaime Pedraza refused to provide his name and shield number to § 87(2)(b)

Allegation F: Lt. Paul McMahon refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that he asked all three officers for their names and shield numbers and each failed to provide the information. In turn, § 87(2)(b) alleged he asked PO Maier for the same information and never received it. PO Pedraza and Lt. McMahon stated that they were never asked to provide their names and shield numbers.

Patrol Guide Procedure 203-09 dictates that officers must courteously and clearly state their name, rank, shield number and command to anyone who requests them and allow the person ample time to note the information (Enc. 2A). § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegations D, E and F be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: